AGREEMENT AND PLAN OF MERGER — PROJECT TITAN

DOCUMENT ID: DOC-M215-01 | MATTER: M-215 | COUNSEL: LATHAM & WATKINS LLP

EXECUTED JUNE 14, 2026 | ENTERPRISE VALUE: $1,850,000,000.00

ARTICLE VIII: INDEMNIFICATION & R&W INSURANCE RETENTION [CHUNK: CL-M215-INDEM]

> **Section 8.04(a) Indemnity Cap & Tipping Basket:** Seller's aggregate liability for breaches of Non-Fundamental Representations shall not exceed 0.50% of Enterprise Value ($9,250,000.00), structured as a 50/50 retention split under the Euclid Transactional R&W Insurance Policy. Buyer shall not recover until aggregate Losses exceed a Tipping Basket of 0.35% of Enterprise Value ($6,475,000.00), upon which recovery relates back to the first dollar. Survival period is fixed at 15 months. Includes full Double Materiality Scrape.

ARTICLE X: CHANGE OF CONTROL & ASSIGNMENT [CHUNK: CHK-M215-COC]

Section 10.04 Change of Control: Direct or indirect acquisition of >50% voting power of Company requires written consent of Counterparty under Material Customer Contracts listed in Schedule 3.16, except for affiliate restructurings.